2. On the principles to be followed in making appointments to civil services and posts and in making promotions and transfers from one service to another and on the suitability of candidates for such appointments, promotions and transfers.

3. On all disciplinary matters affecting a person serving under the government of the state in a civil capacity including memorials or petitions relating to such matters.

4. On any claim for reimbursement of legal expenses incurred by a civil servant in defending legal proceedings instituted against him/her in respect of acts done in the execution of his/her official duties.

5. On any claim for the award of a pension in respect of injuries sustained by a person while serving under the government of the state and any question as to the amount of any such award.

6. Any other matter referred to it by the Governor.

The Supreme Court has held that if the government fails to consult the SPSC in these matters, the aggrieved public servant has no remedy in a court. In other words, the court held that any irregularity in consultation with the SPSC or acting without consultation does not invalidate the decision of the government. Thus, the provision is directory and not mandatory. Similarly, the court held that a selection by the SPSC does not confer any right to the post upon the candidate. However, the government is to act fairly and without arbitrariness or malafides.

The additional functions relating to the services of the state can be conferred on the SPSC by the state legislature. The state legislature can also place the personnel system of any local authority, corporate body or public institution within the jurisdiction of the SPSC. Hence, the jurisdiction of the SPSC can be extended by an Act made by the state legislature.

The SPSC presents, annually, to the governor a report on its performance. The governor places this report before both the Houses of the state legislature, along with a memorandum explaining the cases where the advice of the Commission was not accepted and the reasons for such non-acceptance.

LIMITATIONS

The following matters are kept outside the functional jurisdiction of the SPSC. In other words, the SPSC is not consulted on the following matters:

1. While making reservations of appointments or posts in favour of any backward class of citizens.

2. While taking into consideration the claims of scheduled castes and scheduled tribes in making appointments to services and posts.

The governor can exclude posts, services and matters from the purview of the SPSC. The Constitution states that the governor, in respect to the state services and posts may make regulations specifying the matters in which, it shall not be necessary to consult the SPSC. But, all such regulations made by the governor shall be laid before each House of the state legislature for at least 14 days. The state legislature can amend or repeal them.

Role